

SENATE No. 112

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to Children's Advocacy Centers.

PETITION OF:

NAME:

Julian Cyr

DISTRICT/ADDRESS:

Cape and Islands

SENATE No. 112

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 112) of Julian Cyr for legislation relative to Children's Advocacy Centers. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to Children's Advocacy Centers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws are hereby amended by inserting after chapter 220 the following
2 chapter:-

3 CHAPTER 220A

4 MASSACHUSETTS CHILDREN'S ALLIANCE

5 Section 1. As used in this chapter the following words shall, unless the context clearly
6 requires otherwise, have the following meanings:-

7 "Accreditation", the process in which certification of competency, authority, or credibility
8 is presented by national or state level standards to ensure effective, efficient and consistent
9 delivery of services by a children's advocacy center.

10 "Alliance", Massachusetts Children's Alliance.

"Children's Advocacy Center", a child-focused, trauma-informed, facility-based program in which a multidisciplinary team with representatives from law enforcement, child protection, prosecution, mental health, forensic interviewing, medical, and victim advocacy disciplines collaborate to offer the best response to child victims of maltreatment. Children advocacy centers assist in the response to allegations of child sexual abuse, severe physical abuse and exploitation of children. The multidisciplinary team collaborates to interview children, meet with a child's non-offending parents, guardians, caregivers, and family members, and to coordinate a streamlined, victim-focused response including investigation and provision of necessary services to ensure children can heal. A children's advocacy center response facilitates efficient collection and sharing of information, improves timely evidence gathering, enhances communication among agencies involved, and broadens the knowledge base from which protective and investigative decisions are made. Children's advocacy centers may be private nonprofit organizations or based within hospitals, district attorney's offices, or other governmental entities.

"Center," Children's Advocacy Center.

"Forensic interview", an interview of a child victim of maltreatment by a forensic interviewer who meets or exceeds national training standards. Forensic interviews are conducted in an unbiased, developmentally appropriate, culturally sensitive, and fact-finding manner to obtain accurate information and support the best outcome for children. Whenever practical, members of the multidisciplinary team involved in the response shall observe the interview, which shall be electronically recorded.

"Massachusetts Children's Alliance", the statewide membership organization that serves as a funding source to ensure children's advocacy centers have the necessary fiscal resources to

properly and effectively respond to child victims. The alliance engages member children's advocacy centers in an accreditation process which meets or exceeds standards set by the national children's alliance, by collecting and sharing of data, and by providing training, leadership, and technical assistance to existing and emerging children's advocacy centers in the commonwealth. The alliance ensures through contractual relationship that children's advocacy centers meet or exceed national standards for operating and these standards shall include:

1. multidisciplinary teams that include representation from law enforcement, prosecutors, child protective services, the medical and mental health fields, and victim advocacy;

2. services that are cultural sensitivity and able to meet the needs of the diverse population of the commonwealth;

3. forensic interviews that are neutral, fact-finding, and avoid duplicative interviewing;

4. victim support and advocacy for children and caregivers, including appropriate counseling, legal, and medical services or referrals;

5. access to medical evaluations;

6. access to mental health services;

7. a formal case review process;

8. a case tracking, monitoring, and outcomes process;

9. organizational capacity;

10. a child-focused setting that is comfortable, safe, and private; and

11. any additional necessary standards.

"Multidisciplinary team", a group of professionals working collaboratively under a written protocol, who represent various disciplines to assure the most effective and coordinated response to child maltreatment for every child. A children's advocacy center's multidisciplinary team shall include professionals involved in the coordination, assessment, investigation, and prosecution of child abuse cases, including the children advocacy center's staff, participating law enforcement agencies, the district attorney, and the department of children and families. A multidisciplinary team shall include professionals involved in the delivery of services, including medical and mental health services, to victims of child maltreatment and their non-offending family members.

"National Children's Alliance", the national, professional membership organization that provides standards for accreditation of children's advocacy centers and is dedicated to helping local communities respond to allegations of child abuse in an effective and efficient manner.

Section 2. There is hereby created a body politic and corporate to be known as the Massachusetts Children's Alliance for the purpose of providing leadership, innovative programming, training, technical assistance, data collection, and capacity building to meet local, state, and national requirements for children's advocacy centers. The alliance may contract with state and federal entities to ensure that children's advocacy centers are equipped to meet the needs of child victims of abuse. The alliance may receive and disburse any funds, grants, and services in furtherance of its functions.

Section 3. Children's advocacy centers shall provide a formal, integrated, culturally competent and multidisciplinary response to child maltreatment for the benefit of children and

74 their non-offending family members. The centers shall expedite a streamlined process by means
75 of a prompt, coordinated, child focused, fact finding forensic multidisciplinary team interview
76 and assessment which obtains the information required by involved agencies and ensures
77 children are not further traumatized by the systems intended to aid. Moreover, this collaborative
78 process shall ensure that professionals have the necessary information to provide services in the
79 best interest of the child. The centers shall offer comprehensive services to address the mental
80 health and medical needs of children. The centers shall continuously work towards the
81 improvement of prevention strategies and intervention responses.